

As to the overall time period of delay, essentially 1 year has elapsed between the attempted filing of the stipulation and the instant motion. Even if we give Defendants the benefit of the doubt and reduce the effective time period of the delay due to the default issue, we have an unexplained delay from July 2025 through the end of January 2026.

Another factor is the failure to engage in mediation as agreed. *Quach* noted a concern where compelling arbitration would “create undue delay and gamesmanship going forward.” (*Quach, supra*, at p.586) Even if the promise to mediate is viewed as an independent obligation from the promise to arbitrate, there is an element of undue delay and gamesmanship under these circumstances by failing to mediate and allowing this case to drag out. Ultimately this case was filed in October 2024, nearly 2 years ago, and we have yet to reach first base.

Defendants shall file a responsive pleading within 10 days.

Plaintiffs shall prepare and submit a form of order consistent with this ruling within 10 days.

4. 25CV01698 Shamir Insight, Inc v. Paradise Lens Lab LLC

EVENT: Plaintiff's Motion for Judgment Pursuant to Stipulation for Settlement of Judgment (CCP 664.6)

Plaintiff's Motion for Judgment Pursuant to Stipulation for Settlement of Judgment is GRANTED. The Court will sign the proposed order and judgment.

5. 25CV02868 Elite Acceptance Corp v. Vanpoole, Brandi Leanne

EVENT: Opposition to claim of exemption

The Court will conduct a hearing.